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24STCV23668

Refrigerator Manufacturers, LLC v. Premier Culinary Solutions, Inc., et al.

Tuesday, September 8,

2026

[TENTATIVE] ORDER DENYING PLAINTIFF AND CROSS-DEFENDANT
REFRIGERATOR MANUFACTURERS, LLC'S MOTION FOR SUMMARY JUDGMNT, OR ALTERNATIVELY,
SUMMARY ADJUDICATION [Res. No. -0338]

I. BACKGROUND

The

complaint alleges that Plaintiff and Cross-Defendant Refrigerator Manufacturers, LLC ("RMI" or "Plaintiff") supplied Defendant and Cross-Complainant Premier Culinary Solutions, Inc. ("Premier" or "Defendant") with labor, services, equipment, and materials, including installation of a walk-in freezer and remote refrigeration system (the "Project"), for a nutrition and food service building, but Defendant failed to pay all amount due under the parties' purchase order agreements. The building was being constructed at the West Los Angeles Veterans Affairs Medical Center, which is operated by the United States Department of Veterans Affairs ("VA") in Los Angeles.

On September 13, 2024, Plaintiff filed this action against Premier and Does 1 through 25, asserting causes of action for (1) breach of contract, and (2) account stated.

On

January 30, 2026, Premier filed its operative Third Amended Cross-Complaint (“TAC”) against RMI, an individual named Lynn Mihalik, and Roes 1 through 40, asserting the following causes of action: (1) breach of contract (VA contract); (2) breach of contract (Lincoln contract); (3) breach of express warranty (VA project); (4) breach of implied warranty of merchantability (VA project); (5) breach of implied warranty of fitness for a particular purpose (VA project); and (6) fraud – false promise.

RMI

now moves for summary judgment or, alternatively, summary adjudication of each cause of action in the TAC.

II. ARGUMENTS

A. Motion

papers filed May 28, 2026.

RMI

is entitled to summary judgment or adjudication of all claims in the TAC because: (1) Premier cannot establish for the first cause of action for breach of contract (VA contract) that RMI failed to perform under the contract; (2) Premier cannot establish for the second cause of action for breach of contract (Lincoln contract) the elements of causation or damages; (3) Premier cannot establish for the third cause of action for breach of express warranty that the warranty was in effect when the alleged defects arose; (4) Premier cannot establish for the fourth cause of action for breach of implied warranty of merchantability that the refrigeration equipment provided by RMI was not of the same quality as those generally acceptable in the trade; (5) Premier cannot establish for the fifth cause of action for breach of implied warranty of fitness for a particular purpose that the consumer good was not suitable for the particular purpose; and (6) Premier cannot establish for the sixth cause of action for fraud that RMI did not intend to perform its promise when it was made.

B. Opposition

filed August 19, 2026. Objections filed
August 20, 2026.

For the first cause of action for
breach of contract (VA contract), triable material fact issues exist regarding

whether RMI performed its contractual obligations within a reasonable time, whether RMI's work was defective, and whether the damages were foreseeable.

For the second cause of action for breach of contract (Lincoln contract), triable material fact issues exist regarding the timeliness of RMI's performance, causation, and damages.

For the third cause of action for breach of express warranty, triable material fact issues exist regarding scope, commencement, and duration of the express warranty.

For the fourth cause of action for breach of implied warranty of merchantability, summary adjudication should be denied because RMI analyzed the claim under Civil Code section 1791.1 instead of the statute under which Premier is asserting the claim (i.e., Commercial Code 2314). There are also triable material facts regarding whether RMI's equipment failed to meet the minimum quality standard of the trade for commercial walk-in refrigeration systems intended for high-volume institutional food service.

For the fifth cause of action for breach of implied warranty of fitness for a particular purpose, triable material fact issues exist as to whether RMI's equipment was suitable for the particular purpose for which RMI designed and manufactured it.

Lastly, for the sixth cause of action for fraud, the economic loss rule does not bar that claim, and triable issues of material fact exist regarding whether RMI intended not to perform its contractual obligations.

C. Reply
papers filed August 28, 2026.

The motion should be granted because Premier's opposition confirms that Premier's claims lack evidentiary support.

III. REQUEST
FOR JUDICIAL NOTICE

RMI's

request for judicial notice of: (a) its Complaint; (b) Premier's TAC; (c)

Premier's First Amended Answer to RMI's Complaint; and (d) RMI's Answer to

Premier's TAC is GRANTED. (Request for Judicial Notice, filed May 28, 2026, p.

2:8-13; Evid. Code, § 452, subd. (d) [allowing judicial notice of court records].)

IV. EVIDENTIARY

OBJECTIONS

The

Court rules on RMI's objections to Premier's evidence as follows.

Objections to

the Declaration of Kevin Rutledge

Nos. 1 through

17: OVERRULED.

Objections to

the Declaration of William Clements

Nos. 1, 2, 3, 4,

8, 9, 10, 11, and 12: OVERRULED.

No. 5 is

SUSTAINED on inadmissible hearsay grounds.

Nos. 6 and 7 are

SUSTAINED on speculation grounds.

Objections to

the Declaration of Nick Hensel

Nos. 1 through

12: OVERRULED.

Objections to

the Declaration of Cody Malloy

Nos. 1 through
11: OVERRULED.

No. 12: SUSTAINED
on improper legal opinion grounds.

Objections to
the Declaration of Scott Roczey

Nos. 1 and 3
through 17, 19, 20, 24, 25, 26, 27, and 28: OVERRULED.

No. 2: SUSTAINED
on improper legal opinion grounds.

No. 18: SUSTAINED
on inadmissible hearsay grounds.

Nos. 21, 22, and
23: SUSTAINED as to the declarant's hearsay statements, but otherwise
OVERRULED.

Objections to
the Declaration of Kevin Audette

Nos. 1 through 6
and 8: OVERRULED.

No. 7: SUSTAINED
on improper legal opinion grounds.

The Court rules
on Premier's objections to RMI's evidence as follows

Objections to the
Declaration of Christopher R. Morgan

Nos. 1, 2, 3, and
8: OVERRULED.

Nos. 4, 5:

SUSTAINED for lack of foundation and qualification.

Nos. 6, 7:

SUSTAINED for improper legal conclusion and lack of foundation.

Objections to the

Declaration of Patrick Anthony Stremel

No. 1: OVERRULED.

The declaration filed with the Court states it was executed on May 22, 2026, not May 29, 2024.

Nos. 2, 3, 4, 7,

8, 9, and 10: OVERRULED.

Nos. 5 and 6:

SUSTAINED for improper legal conclusion and lack of foundation.

V. LEGAL

STANDARD

On

a motion for summary judgment or summary adjudication, the moving party bears the initial burden of making a prima facie showing that no triable issue of material fact exists. (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant satisfies that burden by showing that “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2); see also Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.)

Once

the defendant has met that burden, the burden shifts to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth

the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Id.; see also *Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

Code of Civil Procedure section 437c, subdivision (c), requires summary judgment where the evidence submitted, together with “all inferences reasonably deducible from the evidence” and uncontradicted by other inferences or evidence, establishes that no triable issue of material fact exists and that the moving party is entitled to judgment as a matter of law. (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119, quoting Code Civ. Proc., § 437c, subd. (c) [italics removed].)

The pleadings delimit the issues to be considered on a motion for summary judgment. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1253.) Accordingly, a defendant moving for summary judgment need to address only the issues raised by the complaint, and the plaintiff may not defeat the motion by raising new, unpleaded issues in opposition. (*Ibid.*)

A. First

Cause of Action for Breach of Contract (VA Contract)

It is undisputed that “[o]n April 20, 2020, Premier and Stronghold Engineering, Inc. (“Stronghold”) entered into a Subcontract Agreement to provide food service equipment as part of a nutrition and food service building being constructed at the West Los Angeles Veterans Affairs Medical Center operated by the United States Department of Veterans Affairs, which is located in Los Angeles, California (“VA Project”).” (Premier’s separate statement in response to RMI’s separate statement of undisputed material facts, filed August 19, 2026 (“UMF”), No. 1.)

The TAC alleges that Premier retained RMI to manufacture and install the refrigeration equipment and systems for the VA Project in accordance with the project specifications and drawings. (TAC, ¶ 8.) RMI thereafter issued its revised and final quotes, which included a one-year limited warranty covering defects in materials and workmanship. (Id. ¶ 9.) Premier then issued two purchase orders totaling \$732,765, followed by a change order in June 2022. (Id. ¶¶ 10–11.) The TAC collectively defines

the purchase orders, RMI's order confirmations, the change order, the parties' course of dealing and agreements concerning scheduling and timing, and applicable terms implied by law as the "VA Contract." (Id. ¶ 12.)

The

TAC alleges that RMI breached the VA Contract by: (1) failing to provide and install the agreed refrigeration system for the VA project within a reasonable time; (2) failing to provide the system free of defect; (3) abandoning the job and failing to complete its work under the VA Contract at the VA Project; and (4) failing and refusing to comply with the implied and express warranties on RMI's work under the VA Contract at the VA Project. (TAC ¶ 15.)

"Establishing

[breach of contract] requires a showing of '(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.' [Citations.]" (D'Arrigo Bros. of California v. United Farmworkers of America (2014) 224 Cal.App.4th 790, 800.)

RMI challenges

the elements of breach and damages. However, the TAC alleges several distinct breaches, and RMI does not address Premier's allegations that RMI abandoned the job and failed to complete its work or failed and refused to comply with the implied and express warranties. Because summary adjudication must completely dispose of a cause of action, RMI's failure to address those pleaded theories independently precludes summary adjudication of the first cause of action. (Code Civ. Proc., § 437c, subd. (f)(1).) The Court nevertheless addresses RMI's remaining arguments.

1. Breach

- Failure to Install the Refrigeration System Within a Reasonable Time

RMI argues that because the alleged VA

Contract did not contain deadlines or define what a reasonable time means, RMI could not breach the agreement by failing to install the refrigeration system within a specific time period. (Motion, p. 13:19-21.)

To prove that the contract did not set

a deadline on RMI's performance, RMI submits the declaration of its President, Tony Bedi ("Bedi"). During his deposition, Bedi was asked whether he was "aware

of any times in ... the contract between RMI and Premier, which discuss when performance is going to occur ...,” and he answered: “Not to my knowledge.” (Compendium of Exhibits, filed May 28, 2026 (“RMI COE”), Exh. 5 (Bedi Depo.), pp. 60:20-61:2.) Even if the VA Contract did not set a specific deadline for its performance, “it is a well-established principle of contract law that ‘[i]f no time is specified for the performance of an act required to be performed, a reasonable time is allowed.’ [Citations.]” (The McCaffrey Group, Inc. v. Superior Court (2014) 224 Cal.App.4th 1330, 1351 [quoting Civil Code section 1657].) ““What constitutes a reasonable time is a question of fact...,” which depends on “the situation of the parties, the nature of the transaction, and the facts of the particular case.” [Citations.]” (Ibid.)

Premier

has presented evidence sufficient to create a triable issue regarding whether RMI performed within a reasonable time. Premier’s President, Scott Roczey, who has more than 25 years of experience in foodservice design and project management, opines that manufacture and installation of the refrigeration system should have taken approximately four to five months. (Roczey Decl., ¶¶ 2–3, 13.) His opinion is based on RMI’s quoted eight-week shipment period, his prior experience with RMI and similar refrigeration projects, and the project’s anticipated installation schedule. (Id. ¶ 13.) Roczey also testifies that RMI acknowledged it was behind schedule, apologized for the delays, and provided a recovery schedule. (Id. ¶ 18.) This evidence raises a triable issue as to whether RMI performed within a reasonable time. For those reasons, the Court finds RMI’s reasonableness argument unpersuasive.

2.

Failure to Provide the System Free of Defect

RMI

also argues that Premier cannot establish that RMI breached the alleged VA Contract by providing a system with defects.

RMI relies on evidence that, as of November 22, 2023, “Stronghold confirm[ed] that all refrigeration equipment has been installed at the VA site and is functioning.” (UMF No. 31.) That evidence does not establish, as a matter of law, that the equipment was free from defects.

In any event, Premier has produced declarations from several contractors who personally inspected or repaired the refrigeration system and identified defects in RMI's equipment or work. (See e.g., Declaration of Complete Thermal Services, Inc.'s ("CTS") Journeyman Kevin Rutledge ("Rutledge Decl.") ¶¶ 2-17; Declaration of CTS's Journeyman Nick Hensel ("Hensel Decl.") ¶¶ 2-13.) The competing evidence creates a triable issue regarding whether RMI provided a defective system.

3. Abandonment of Job and Failure to Complete Work Under the VA Contract

RMI has not challenged that breach allegation for the first cause of action.

4. Failure/Refusal to Comply with Implied and Express Warranties under VA Contract

RMI has not challenged that breach allegation for the first cause of action. Thus, RMI has not established entitlement to summary adjudication of the first cause of action based on the breach element. RMI did not address all pleaded theories of breach, and the evidence also presents triable issues regarding the timeliness and quality of RMI's performance.

5. Damages

RMI also moves for summary adjudication of the first cause of action, arguing that Premier cannot establish the damages element for that claim.

The TAC alleges that Premier suffered more than \$507,000 in damages arising from RMI's alleged breaches, including more than \$200,000 in back charges and liquidated damages assessed by Stronghold, more than \$74,000 paid to subcontractors to complete or repair RMI's work, and approximately \$223,000 in reduced material-escalation compensation. (TAC ¶ 16.) Premier alleges that these losses resulted from RMI's delays, incomplete work, and warranty-related issues. (Ibid.)

RMI claims that Premier cannot show that the former was "in any way liable for a

deductive change order that Premier negotiated and agreed upon [with Stronghold],” because RMI was not a party to the change order agreement between those entities. (Motion, p. 14:13-24.)

“An essential element of a claim for breach of contract are damages resulting from the breach. [Citation.] Causation of damages in contract cases requires that the damages be proximately caused by the defendant's breach. [Citations.]’ [Citations.]” (Troyk v. Farmers Group, Inc. (2009) 171 Cal.App.4th 1305, 1352–1353.)

The Court need not determine on this motion whether Premier can ultimately recover every category or amount of damages alleged in the TAC. Premier presents evidence that it incurred more than \$70,000 in costs to retain third-party contractors to repair or complete RMI's work. (Roczey Decl. ¶¶ 22-24.) If the trier of fact finds that those expenditures were necessitated by RMI's defective or incomplete performance, they constitute damages caused by the alleged breach. The parties also dispute whether the back charges and material-escalation reduction imposed by Stronghold were caused by RMI's conduct. Those disputes cannot be resolved on summary adjudication. Moreover, “[a] plaintiff is entitled to recover nominal damages for the breach of a contract, despite inability to show that actual damage was inflicted upon him [citation], since the defendant's failure to perform a contractual duty is, in itself, a legal wrong that is fully distinct from the actual damages.” (Sweet v. Johnson (1959) 169 Cal.App.2d 630, 632; see also Ross v. Frank W. Dunne Co. (1953) 119 Cal.App.2d 690, 700 [“Once a breach of contract has been proven, nominal damages are presumed to follow as a conclusion of law”].)

Accordingly, even apart from the disputed Stronghold back charges and material-escalation adjustment, RMI has not established the absence of damages as a matter of law.

For the reasons set forth above, RMI's request for summary adjudication of the first cause of action for breach of the VA Contract is DENIED.

B.

Second Cause of Action for Breach of Contract (Lincoln Contract)

The following facts are undisputed. On May 3, 2024, Premier sent RMI a purchase order for a project at the Abraham Lincoln High School located at 3501 North Broadway, Los Angeles, CA 90031 (the "Lincoln Project"). (UMF No. 35 [Premier only disputes that the purchase order was for refrigeration "equipment," not "services," as RMI claims].) "RMI sent Premier an order confirmation and indicates that due to the outstanding balance on Premier's account, payment is due upon receipt." (UMF No. 36.) "Premier indicated it would drop off payment for the Lincoln Project order on May 16, 2024." (UMF No. 37.)

The TAC alleges that the May 3, 2024, purchase order, RMI's order confirmation, and Invoice No. 28688 constitute the "Lincoln Contract," which RMI breached by failing to furnish the refrigeration equipment by July 19, 2024. (TAC, ¶¶ 26, 28, 42, 70.)

RMI's showing that July 19, 2024, was an estimated rather than fixed ship date does not establish the absence of a breach. Where no time for performance is specified, performance is required within a reasonable time, which ordinarily presents a question of fact based on the circumstances of the particular case. (The McCaffrey Group, Inc. v. Superior Court (2014) 224 Cal.App.4th 1330, 1351 [quoting Civil Code section 1657].)

Premier presents evidence that it paid for the Lincoln equipment in advance and that, after the estimated July 19, 2024, ship date passed, RMI refused to deliver the equipment unless Premier paid approximately \$205,000 arising from the separate VA Project. (Roczey Decl. ¶¶ 35, 36.) The equipment was not ultimately picked up until March 26, 2025. (UMF No. 42.) A trier of fact could reasonably find that conditioning performance on payment of a separate disputed obligation caused an unreasonable delay and constituted a breach.

RMI also argues that Premier cannot establish damages. (Motion, p. 16:2-8.) Premier, however, presents evidence that the delay caused it to incur employee time evaluating replacement equipment and retrofit options, mileage expenses, and loss-of-use-of-money damages. (Roczey Decl. ¶¶ 37-41.) RMI's eventual delivery of the equipment does not eliminate a triable issue as to damages incurred during the delay. Accordingly, RMI's request for summary adjudication

of the second cause of action for breach of the Lincoln Contract is DENIED.

C. Third

Cause of Action for Breach of Express Warranty (VA Project)

“[T]o prevail on

a breach of express warranty claim, the plaintiff must prove (1) the seller’s statements constitute an “affirmation of fact or promise” or a “description of the goods”; (2) the statement was “part of the basis of the bargain”; and (3) the warranty was breached. [Citation.]” (Weinstat v. Dentsply Internat., Inc. (2010) 180 Cal.App.4th 1213, 1227.)

RMI moves for

summary adjudication of the breach of express warranty claim, arguing that the claim fails because Premier cannot establish that the warranty was in effect when the alleged defects arose. RMI focuses on the warranty listed in its Project Quotations for the VA Project, which stated: “One Year Limited Warranty – All Refrigerator Manufacturers, LLC (RMI) products are guaranteed to be free from defects in materials and/or workmanship. RMI will replace or repair the defective part without charge, exclusive of freight or labor, for a period of one year from date of shipment. Parts determined as defective must be returned to the factory.” (RMI COE, Exh. 10 – a copy of the Project Quotations.) RMI then argues that express warranty was in effect through August 29, 2023, because on August 29, 2022, the remainder of the refrigeration equipment for the VA Project had been shipped. (Motion, p. 16:25-28.)

However, the TAC

also alleges that “[t]he invoices issued by RMI in connection with the VA Project provide an express warranty providing ‘Labor warranty ends 90 days from ship date & parts warranty ends one year from ship date.’ RMI’s order confirmations ... also provide for a ‘4-yr Extended Compressor Warranty’ and ‘One Year Parts and Labor Warranty Included in Cost of Walk-In.’” (TAC ¶ 46.)

RMI has failed

to address those warranties in its motion and, consequently, failed to meet its initial burden. (See Code Civ. Proc., § 437c, subd. (f)(1) [“A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty”].) The Court therefore need not determine whether RMI’s proposed August 29, 2023, expiration date is correct as to the separate warranty contained in the Project

Quotations.

Therefore, the request for summary adjudication of the third cause of action for breach of express warranty (VA Project) is DENIED.

D. Fourth

Cause of Action for Breach of Implied Warranty of Merchantability (VA Project)

The implied warranty of merchantability arises by operation of law. (*American Suzuki Motor Corp. v. Superior Court* (1995) 37 Cal.App.4th 1291, 1295.) RMI argues that Premier cannot establish merchantability under CACI 3210 and 3212 and Civil Code section 1791.1. (Motion, p. 18:5-19.) Premier's claim, however, arises under Commercial Code section 2314, which requires, among other things, that goods be of acceptable quality in the trade and fit for their ordinary purpose. (TAC ¶ 52; Comm. Code, § 2314, subd. (2).)

RMI contends that the refrigeration system was operational by November 2023 and that the later problems resulted from misuse or third-party conduct rather than defects. (Motion, pp. 18:23-19:8.) RMI's reliance on consumer-warranty standards does not resolve Premier's Commercial Code claim. In any event, Premier presents evidence from contractors who inspected or repaired the system and identified defects in the equipment or work. (Rutledge Decl. ¶¶ 2-17; Hensel Decl. ¶¶ 2-13.) This competing evidence creates a triable issue as to whether the refrigeration system was merchantable under Commercial Code section 2314.

Accordingly, RMI's request for summary adjudication of the fourth cause of action for breach of implied warranty of merchantability (VA Project) is DENIED.

E. Fifth

Cause of Action for Breach of Implied Warranty of Fitness for a Particular Purpose (VA Project)

"[T]he implied warranty of fitness for a particular purpose is a warranty implied by law when a seller has reason to know that a buyer wishes goods for a particular purpose and is relying on the seller's skill and judgment to furnish those

goods. [Citation.] The warranty is breached if the goods are not reasonably fit for the intended purpose and result in injury. [Citation.] A claim for breach of the implied warranty of fitness is based on the nature and impacts of the product, not on injuries attributable to the marketing efforts by the seller.”

(Martinez v. Metabolife Internat., Inc. (2003) 113 Cal.App.4th 181, 189.)

Here,

the TAC alleges: “RMI knew or had reason to know that Premier intended to use the refrigeration system for a particular purpose, namely, several turnkey refrigeration rooms and systems, including but not limited to commercial walk-in refrigerators, refrigeration roof racks, blast chillers and a remote refrigeration system that were to be specially built pursuant to the specifications and drawings of the VA Project. In addition, California Uniform Commercial Code section 2315 provides for an implied warranty that the goods shall be fit for such purpose.” (TAC ¶ 63.)

The TAC alleges that the refrigeration system was incomplete and unsuitable for its intended purpose because of design and operational defects, including repeated freezing, shutdowns, and problems with the blast chiller components. (TAC ¶ 66.) RMI relies on evidence that the equipment was installed and functioning as of November 22, 2023. (UMF No. 31.) That fact, however, does not establish that the equipment was reasonably fit for its intended purpose. Premier presents contrary evidence of design and operational defects, including Hensel's testimony that the refrigeration lines were too long, causing trapped oil and reduced cooling efficiency. (Hensel Decl. ¶ 7.) This evidence creates a triable issue as to whether the system was reasonably fit for its intended purpose.

Accordingly,

RMI's request for summary adjudication of the fifth cause of action for breach of implied warranty of fitness for a particular purpose (VA Project) is DENIED.

F. Sixth

Cause of Action for Fraud – False Promise

“[T]he nature of promissory fraud is that it is a promise of future performance with no present intent to actually perform.” (Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 403 [italics removed].)

The TAC alleges that RMI promised to provide the Lincoln refrigeration equipment in exchange for Premier's advance payment but did not intend to perform that promise on the terms represented. (TAC ¶¶ 70, 71.) RMI first argues that the fraud claim is not independent of the parties' contractual duties. Its reply, however, acknowledges that Premier alleges an independent duty not to make promises without an intent to perform. (Reply, p. 10:8-9.) RMI therefore has not established entitlement to summary adjudication on that ground.

RMI also argues that Premier cannot establish fraudulent intent because Roczey testified that he believed RMI's promise when it was made. (Motion, p. 22:3-6.) But Premier's belief in the promise does not establish RMI's intent when making it. Moreover, Premier presents evidence that the parties were already engaged in a payment dispute concerning the VA Project when RMI accepted advance payment for the separate Lincoln equipment and later conditioned release of that equipment on payment of the disputed VA balance. (Roczey Decl. ¶¶ 35, 36.) Viewed in Premier's favor, this evidence permits a reasonable inference that RMI did not intend to perform on the terms represented when Premier made the advance payment, creating a triable issue as to RMI's intent.

Accordingly, RMI's request for summary adjudication of the fraud – false promise claim is DENIED.

VI. CONCLUSION

Based on the foregoing, the Motion for Summary Judgment, or Alternatively, Summary Adjudication is DENIED in its entirety.